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Case Number: 25TRCV02542 Hearing Date: August 6, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

AMELIA SANCHEZ

;

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO.,
INC.

;

Defendant.

Case

No.:

25TRCV02542

Hearing

Date:

August
6, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF AMELIA SANCHEZ' MOTION TO COMPEL
FURTHER RESPONSE TO SPECIAL INTERROGATORIES SET ONE FROM DEFENDANT AMERICAN
HONDA MOTOR CO., INC.

(2)

PLAINTIFF AMELIA SANCHEZ' MOTION TO COMPEL
FURTHER RESPONSES TO FIRST SET OF REQUESTS FOR PRODUCTION FROM DEFENDANT
AMERICAN HONDA MOTOR CO., INC.

(3)

PLAINTIFF AMELIA SANCHEZ' REQUESTS FOR
MONETARY SANCTIONS

MOVING PARTY: Plaintiff, Amelia Sanchez

RESPONDING PARTY: Defendant, American Honda Motor Co., Inc.

(1)

Plaintiff

Amelia Sanchez' Motion to Compel Further Response to Special Interrogatories
Set One from Defendant American Honda Motor Co., Inc. is DENIED pursuant to
Code of Civil Procedure section 2030.300, subdivision (a).

(2)

Plaintiff

Amelia Sanchez' Motion to Compel Further Responses to First Set of Requests for
Production from Defendant American Honda Motor Co., Inc. is DENIED pursuant to

Code of Civil Procedure section 2031.310, subdivision (a).

(3)

Plaintiff

Amelia Sanchez' Requests for Monetary Sanctions are DENIED pursuant to Code of Civil Procedure sections 2030.300, subdivision (d), and 2031.310, subdivision (h).

The Court considers the moving papers filed on March 26, 2026, the opposition briefs filed on July 1, 2026, and the reply briefs filed on July 8, 2026.

BACKGROUND

Factual Background

On July 31, 2025, plaintiff Amelia Sanchez ("Plaintiff") filed the Complaint against defendants American Honda Motor Co., Inc. ("Defendant") and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of Song-Beverly Act – Breach of Express Warranty and (2) Violation of Song-Beverly Act – Breach of Implied Warranty.

On October 6, 2025, Plaintiff served Defendant with Special Interrogatories, Set One, and Requests for Production, Set One. (Declaration of Timothy Lupinek re: SROG ("SROG Lupinek Decl."), ¶ 3, Exh. A; Declaration of Timothy Lupinek re: RPD ("RPD Lupinek Decl."), ¶ 3, Exh. A.) Defendant provided responses on November 24, 2025. (SROG Lupinek Decl., ¶ 4, Exh. B; RPD Lupinek Decl., ¶ 4, Exh. B.)

On January 27, 2026, Plaintiff issued a meet-and-confer letter to Defendant, outlining the alleged deficiencies in Defendant's responses. (SROG Lupinek Decl., ¶ 5, Exh. C; RPD Lupinek Decl., ¶ 5, Exh. C.)

On February 2, 2026, Plaintiff's counsel engaged in a telephonic meet-and-confer with Defendant's counsel concerning Special Interrogatories Nos. 70, 72-74, and 76-81. (SROG Lupinek Decl., ¶ 6.)

On February 10, 2026, Defendant's counsel emailed Plaintiff's counsel to request an extension to respond to

Plaintiff's meet-and-confer letter by March 15, 2026. (SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.)

On February 11, 2026, the parties' counsels conducted a telephonic meet-and-confer regarding Requests for Production Nos. 45 and 56-69. (RPD Lupinek Decl., ¶ 6.) On the same day, Plaintiff's counsel confirmed that the parties had just met and conferred, and that Defendant's counsel would inform Plaintiff by March 13, 2026, if they would provide additional responses. (SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.) Additionally, should Defendant choose not to provide further responses, Plaintiff would have until March 16, 2026, to file any motions to compel. (SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.)

On March 13, 2026, Defendant's counsel again requested an extension, seeking to delay the deadline until March 16, 2026. (SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.) In response, Plaintiff's counsel expressed willingness to agree to this extension, contingent upon Defendant's agreement to extend the deadline for filing any motions to compel to March 27, 2026. (SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.) Defendant's counsel accepted this proposal. (SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.) However, it appears that Defendant failed to provide any responses or further submissions.

LEGAL STANDARD

Code of Civil Procedure section 2030.300 provides that "[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that" the responses contain: (1) answers that are evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections. (Code Civ. Proc., §2030.300, subd. (a).) "[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party

waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., §2030.300, subd. (c).) Moreover, “[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §2030.300, subd. (b)(1).)

Additionally, “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc., § 2017.010.) For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2030.300, subd. (d).)

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the

fact.” (Digital Music News LLC v

Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).) “Misuses of the discovery process include ... (d) Failing to respond to or submit to an authorized method of discovery.” (Code Civ. Proc., § 2023.010, subd. (d).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Plaintiff was required to meet

and confer with Defendant before filing these motions. (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in

support of a motion [to compel] shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) ““The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.”” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On January 27, 2026, Plaintiff issued a meet-and-confer letter to Defendant, outlining the alleged deficiencies in Defendant’s responses. (SROG Lupinek Decl., ¶ 5, Exh. C; RPD Lupinek Decl., ¶ 5, Exh. C.)

On February 2, 2026, Plaintiff’s counsel engaged in a telephonic meet-and-confer with Defendant’s counsel concerning Special Interrogatories Nos. 70, 72-74, and 76-81. (SROG Lupinek Decl., ¶ 6.)

On February 10, 2026, Defendant’s counsel emailed Plaintiff’s counsel to request an extension to respond to Plaintiff’s meet-and-confer letter by March 15, 2026. (SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.)

On February 11, 2026, the parties’ counsels conducted a telephonic meet-and-confer regarding Requests for Production Nos. 45 and 56-69. (RPD Lupinek Decl., ¶ 6.) On the same day, Plaintiff’s counsel confirmed that the parties had just met and conferred, and that Defendant’s counsel would inform Plaintiff by March 13, 2026, if they would provide additional responses. (SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.) Additionally, should Defendant choose not to provide further responses, Plaintiff would have until March 16, 2026, to file any motions to compel. (SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.)

On March 13, 2026, Defendant’s counsel again requested an extension, seeking to delay the deadline until March

16, 2026. (SROG Lupinek Decl., Exh. D;
RPD Lupinek Decl., Exh. D.) In response,
Plaintiff's counsel expressed willingness to agree to this extension,
contingent upon Defendant's agreement to extend the deadline for filing any
motions to compel to March 27, 2026.

(SROG Lupinek Decl., Exh. D; RPD Lupinek Decl., Exh. D.) Defendant's counsel accepted this proposal. (SROG Lupinek
Decl., Exh. D; RPD Lupinek
Decl., Exh. D.) However, it appears that
Defendant failed to provide any responses or further submissions.

Accordingly, the Court finds
that Plaintiff sufficiently met and conferred with Defendant before filing these
motions.

DISCUSSION

Plaintiff moves to compel further
responses to Special Interrogatories Nos. 70, 72-74, and 76-81, as well as Requests
for Production Nos. 45 and 56-69.
(SROG MTCF, p. 2:8-10; RPD MTCF, p. 2:7-9.)

Defendant contends that it has produced all relevant documents and
information as outlined in AB 1755, specifically under Code of Civil Procedure
section 871.26, subdivisions (h)(1)-(17), making Plaintiff's remaining requests
exceed the permissible scope of discovery under the Song-Beverly Act. (SROG MTCF, pp. 3:2-4:21; RPD MTCF, pp.
3:2-4:21.) However, the Court finds this argument to be
irrelevant. Code of Civil Procedure
section 871.26 does not govern these motions, nor does it restrict the type of
discovery permitted in a Song-Beverly case.
Moreover, Plaintiff notes that Defendant "has opted out of AB 1755, and
therefore, the provisions of AB 1755 will not even apply to future cases
against Defendant until it opts in under the new law." (SROG Reply, p. 2:24-25; RPD Reply, p. 1:19-20.)

Motion
to Compel Further Responses to Special Interrogatories, Set One

The Court has examined the papers and the separate statements
concerning Special Interrogatories Nos. 70, 72-74, and 76-81.

Special

Interrogatory No. 70

Plaintiff requests: "Describe YOUR efforts to preserve relevant and discoverable information in this matter (including, but not limited to, any preservation letters, the custodians upon to whom such preservation letters were sent, the efforts undertaken to prevent against the deletion or destruction of information)." (SROG Separate Statement, p. 1:7-10.)

In response, Defendant stated: "AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As phrased, this interrogatory improperly seeks discovery on discovery, and the manner in which AHM preserved data for the case, and is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement. *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546; *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611; *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013. None of the information sought bears on the parties' claims and defenses. AHM further objects to this interrogatory to the extent it may be interpreted as asking for information protected by the attorney-client privilege and/or the attorney work-product doctrine, including with respect to its litigation strategy and the mental impressions of AHM's counsel in this case. In addition, AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, p. 1:12-26.)

Here, this request is irrelevant.

Plaintiff requests a detailed account of Defendant's preservation efforts; however, Plaintiff has not asserted that Defendant has failed to preserve evidence or that any evidence has been spoiled. (SROG MTCF, p. 5:12-25.)

Thus, Plaintiff's request to compel further responses to Special Interrogatory No. 70 is DENIED.

Special

Interrogatory No. 72

Plaintiff requests: "IDENTIFY each person responsible for the operations, maintenance, expansion, archiving and upkeep of the network where YOUR customer contact call logs are electronically stored from 2024 to present." (SROG Separate Statement, p. 4:5-7.)

In response, Defendant stated: "AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As phrased, this interrogatory improperly seeks discovery on discovery and the identity of persons responsible for any 'network' on which AHM stores data for any purpose is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement.

Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546; Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1611; Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1013.

None of the information sought bears on the parties' claims and defenses. Further, the term 'network' is not defined or otherwise explained in this interrogatory and, without definition or explanation, is vague, ambiguous, and the information sought cannot be determined, without speculation.

AHM objects to the extent this interrogatory asks for information that is protected by the right to privacy, including with respect to the security of its information network. In addition,

AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the

extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, p. 4:9-24.)

Here, this request is irrelevant. Plaintiff asserts that this request is relevant as it pertains "to where and how Defendant maintains consumer complaint and warranty claim information—core issues under Song-Beverly." (SROG MTCF, p. 5:27-28.) However, Plaintiff fails to provide supporting case law for this assertion.

Plaintiff claims that "[c]ourts consistently recognize the relevance of policies, recordkeeping, and complaints[.]" as demonstrated in Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 136 (Jensen) and

Lukather v. General Motors, LLC (2010) 181 Cal.App.4th 1041, 1051 (Lukather). (SROG MTCF, pp. 5:28-6:2.) Yet, the Court notes that the Court of Appeal

in Jensen concluded that “whether the manufacturer had a written policy on the requirement to repair or replace” is relevant. (Jensen, supra, 35 Cal.App.4th at p. 136.) Plaintiff is not seeking this particular information. Furthermore, Lukather does not address issues concerning a manufacturer’s policies, recordkeeping, or complaints. (Lukather, supra, 181 Cal.App.4th at p. 1051.)

Plaintiff also asserts that “[a]t the federal level, Courts have recognized that Defendant is required to disclose information about electronically stored information sources it had preserved[.]” citing Doe LS 340 v. Uber Technologies, Inc. (N.D.Cal. 2024) 710 F.Supp.3d 794, 803-804 (Doe). (SROG MTCF, p. 6:2-7.) Nevertheless, the federal district court concluded that this information is to be produced in accordance with the Federal Rules of Civil Procedure, Rule 26(f), and the Sedona Principles, both of which are not applicable in this state-court matter. (Doe, supra, 710 F.Supp.3d at pp. 803-804.)

Thus, the Plaintiff’s request to compel further responses to Special Interrogatory No. 72 is DENIED.

Special
Interrogatory No. 73

Plaintiff requests: “IDENTIFY each person responsible for the operations, maintenance, expansion, archiving and upkeep of the network where YOUR DOCUMENTS regarding any pre-litigation repurchase analysis YOU performed for the SUBJECT VEHICLE are electronically stored from 2024 to present.” (SROG Separate Statement, p. 7:7-10.)

In response, Defendant stated: “AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As phrased, this interrogatory improperly seeks discovery on discovery and the identity of persons responsible for any ‘network’ on which AHM stores data for any purpose is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement.

Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546; Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1611; Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1013.

None of the information sought bears on the parties' claims and defenses. Further, the term 'network' is not defined or otherwise explained in this interrogatory and, without definition or explanation, is vague, ambiguous, and the information sought cannot be determined, without speculation.

AHM objects to the extent this interrogatory asks for information that is protected by the right to privacy, including with respect to the security of its information network. In addition,

AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the

extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, p. 7:12-27.)

Here, as discussed above with respect to Special Interrogatory No. 72, Plaintiff's request to compel further responses to Special Interrogatory No. 73 is DENIED.

Special
Interrogatory No. 74

Plaintiff requests: "IDENTIFY each person responsible for the operations, maintenance, expansion, archiving and upkeep of the network where YOUR technical assistance cases between YOU and YOUR authorized repair facilities are electronically stored from 2024 to present." (SROG Separate Statement, p. 10:10-12.)

In response, Defendant stated: "AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As phrased, this interrogatory improperly seeks discovery on discovery and the identity of persons responsible for any 'network' on which AHM stores data for any purpose is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement.

Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546; Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1611; Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1013. None of the information sought bears on the

parties' claims and defenses. Further, the term 'network' is not defined or otherwise explained in this interrogatory and, without definition or explanation, is vague, ambiguous, and the information sought cannot be determined, without speculation. AHM objects to the extent this interrogatory asks for information that is protected by the right to privacy, including with respect to the security of its information network. In addition, AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, pp. 10:14-11:1.)

Here, as discussed above with respect to Special Interrogatory No. 72, Plaintiff's request to compel further responses to Special Interrogatory No. 74 is DENIED.

Special
Interrogatory No. 76

Plaintiff requests: "IDENTIFY each person responsible for the operations, maintenance, expansion, archiving and upkeep of the network where DOCUMENTS evidencing any consumer complaints for defects in materials and workmanship made to YOU are electronically stored from 2024 to present." (SROG Separate Statement, p. 13:11-13.)

In response, Defendant stated: "AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As phrased, this interrogatory improperly seeks discovery on discovery and the identity of persons responsible for any 'network' on which AHM stores data for any purpose is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement.

Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546; Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1611; Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1013.

None of the information sought bears on the parties' claims and defenses. Further, the term 'network' is not defined or otherwise explained in this interrogatory and, without definition or explanation, is vague, ambiguous, and the information sought cannot be determined, without speculation.

AHM objects to the extent this interrogatory asks for information that

is protected by the right to privacy, including with respect to the security of its information network. In addition, AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, pp. 13:15-14:2.)

Here, this request is irrelevant.

Plaintiff asserts that retention policies are relevant as they may indicate "whether Defendant has withheld or destroyed responsive evidence and are relevant to willfulness." (SROG Separate Statement, pp. 13:15-14:2.) Plaintiff references *Kwan v. Mercedes-Benz of North America, Inc.* (1994) 23 Cal.App.4th 174, 186 (Kwan) to support the claim that "[c]ourts permit discovery of retention policies." (SROG MTCF, p. 6:11-14.) Nonetheless, the Court observes that the Court of Appeal in *Kwan* determined that "[w]hether the lack of a written policy" concerning the defendant's implementation of the Song-Beverly Act's provisions was relevant. (Kwan, *supra*, 23 Cal.App.4th at p. 186.) Plaintiff is not seeking this particular information.

Furthermore, Plaintiff asserts that "California courts have upheld the relevance of interrogatories seeking information about the record retention policies, as such information could help the party to conduct a reasonable search for responsive documents." (SROG MTCF, p. 6:20-22.) However, the Court notes that this information is relevant only under certain circumstances. In Plaintiff's own cited case, *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, the Court of Appeal found that the interrogatory requesting the defendant to "[e]xplain in detail [their] document retention (including management) practices or policies" was relevant because Plaintiff sought declaratory relief "concerning the [defendant's] 'policies, practices, and procedures' " and sought a declaration that the defendant's actions were unlawful and indicative of a pattern of refusal to produce records in response to Public Records Act requests.

As previously stated, Plaintiff does not allege that Defendant has failed to preserve evidence or that any evidence has been spoiled. Consequently, it remains unclear why such

information is relevant, given that Plaintiff does not assert this claim.

Thus, the Plaintiff's request to compel further responses to Special Interrogatory No. 76 is DENIED.

Special
Interrogatory No. 77

Plaintiff requests: "IDENTIFY each person responsible for the operations, maintenance, expansion, archiving and upkeep of the network where YOUR warranty claim records are electronically stored from 2024 to present." (SROG Separate Statement, p. 16:14-16.)

In response, Defendant stated: "AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As phrased, this interrogatory improperly seeks discovery on discovery and the identity of persons responsible for any 'network' on which AHM stores data for any purpose is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement.

Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546; Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1611; Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1013.

None of the information sought bears on the parties' claims and defenses. Further, the term 'network' is not defined or otherwise explained in this interrogatory and, without definition or explanation, is vague, ambiguous, and the information sought cannot be determined, without speculation.

AHM objects to the extent this interrogatory asks for information that is protected by the right to privacy, including with respect to the security of its information network. In addition,

AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, pp. 16:18-17:5.)

Here, as discussed with respect to Special Interrogatory No. 76, Plaintiff's request to compel further responses to Special Interrogatory No. 77 is DENIED.

Special

Interrogatory No. 78

Plaintiff requests: "State YOUR document/data retention or destruction policies used by those who evaluate California consumer's requests for repurchase or replacement from 2024 to present." (SROG Separate Statement, p. 19:16-17.)

In response, Defendant stated: "AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As phrased, this interrogatory improperly seeks discovery on discovery, and the manner in which AHM stores, collects, or reviews information, and is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement. *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546; *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611; *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013. None of the information sought bears on the parties' claims and defenses. In addition, AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, pp. 19:19-20:2.)

Here, as discussed above with respect to Special Interrogatory No. 76, Plaintiff's request to compel further responses to Special Interrogatory No. 78 is DENIED.

Special

Interrogatory No. 79

Plaintiff requests: "State YOUR document/data retention or destruction policies that govern YOUR customer call logs from 2024 to present." (SROG Separate Statement, p. 22:22-23.)

In response, Defendant stated: "AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As

phrased, this interrogatory improperly seeks discovery on discovery, and the manner in which AHM stores, collects, or reviews information, and is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement. *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546; *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611; *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013. None of the information sought bears on the parties' claims and defenses. In addition, AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, pp. 22:25-23:8.)

Here, as discussed with respect to Special Interrogatory No. 76, Plaintiff's request to compel further responses to Special Interrogatory No. 79 is DENIED.

Special
Interrogatory No. 80

Plaintiff requests: "Specify YOUR document/data retention or destruction policies that govern YOUR technical assistance cases between YOU and YOUR authorized repair facilities from 2024 to present." (SROG Separate Statement, p. 26:2-4.)

In response, Defendant stated: "AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As phrased, this interrogatory improperly seeks discovery on discovery, and the manner in which AHM stores, collects, or reviews information, and is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement. *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546; *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611; *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013. None of the information sought bears on the parties' claims and defenses. In addition, AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, p. 26:6-17.)

Here, as discussed with respect to Special Interrogatory No. 76, Plaintiff's request to compel further responses to Special Interrogatory No. 80 is DENIED.

Special
Interrogatory No. 81

Plaintiff requests: "Specify YOUR document/data retention or destruction policies that govern YOUR warranty claims records from 2024 to present." (SROG Separate Statement, p. 29:8-9.)

In response, Defendant stated: "AHM objects to this interrogatory as overly broad and seeking information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence, particularly as it is not limited in time or scope to any matter at issue in this litigation. As phrased, this interrogatory improperly seeks discovery on discovery, and the manner in which AHM stores, collects, or reviews information, and is not directed to assisting in evaluating this case, preparing for trial, or facilitating settlement. *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546; *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611; *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013. None of the information sought bears on the parties' claims and defenses. In addition, AHM objects to this interrogatory to the extent it may call for the production of information that is confidential, commercially sensitive, and/or proprietary to AHM. AHM further objects to the extent this interrogatory asks AHM to respond on behalf of any other entity." (SROG Separate Statement, p. 29:11-22.)

Here, as discussed with respect to Special Interrogatory No. 76, Plaintiff's request to compel further responses to Special Interrogatory No. 81 is DENIED.

As such, Plaintiff's Motion to Compel Further Response to Special Interrogatories Set One and request for monetary sanctions are DENIED.

Motion
to Compel Further Responses to Demand for Inspection, Set One

The Court has examined the papers and the separate statement concerning Requests for Production Nos. 45 and 56-69. The Court finds that Plaintiff failed to demonstrate

good cause for these requests.

As discussed, “[t]o establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC, supra, 226 Cal.App.4th at p. 224.)

Here, Plaintiff does not attempt to demonstrate good cause until their reply papers, in which they assert that “[t]he information sought may refute [Defendant’s] Affirmative Defenses claiming that Plaintiff and/or others misused or abused the vehicle, or engaged in unauthorized or unreasonable use. For example, if other owners of 2024 Honda CR-V vehicles experienced the same defects and nonconformities on a wide scale, it is highly unlikely that the same defects within Plaintiff’s vehicle were caused by misuse, abuse, or unreasonable use.” (Reply, pp. 5:25-6:2.)

However, this explanation fails to specify how each individual request will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. The required standard is not merely relevance but an actual demonstration of good cause.

As such, Plaintiff’s Motion to Compel Further Responses to First Set of Requests for Production and the request for monetary sanctions is DENIED.

ORDERS

1)

Plaintiff

Amelia Sanchez’ Motion to Compel Further Response to Special Interrogatories Set One from Defendant American Honda Motor Co., Inc. is DENIED.

2)

Plaintiff

Amelia Sanchez’ Motion to Compel Further Responses to First Set of Requests for Production from Defendant American Honda Motor Co., Inc. is DENIED.

3)

Plaintiff

Amelia Sanchez’ Requests for Monetary Sanctions are DENIED.

4)

Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 6, 2026

Tamara

Hall

Judge

of the Superior Court